

CV-25-012548 PRIETO, MARIA DE vs FCA US LLC – Plaintiff’s Motion to Compel Initial Disclosures Pursuant to California Code of Civil Procedure 871.26 and Request for Monetary Sanctions – DENIED in part and GRANTED in part.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: On June 15, 2026, Plaintiff filed a motion to compel initial disclosures pursuant to Code of Civil Procedure section 871.26 and request for monetary sanctions in the amount of \$2500.00 pursuant to Code of Civil Procedure section 871.26(j)(1). On July 2, 2026, Defendant filed an opposition. There is no reply in the court file. The motion to compel is DENIED in part and GRANTED in part. Moving party to submit a proposed order within five court days that conforms with this ruling. Plaintiff argues that Defendant has not provided written responses accompanied by verifications pursuant to the requirements of Code of Civil Procedure section 2016.090. Nothing in section 821.26 requires signed verifications nor does Plaintiff provide any authority linking the verifications of section 2016.090 to section 821.26. Nonetheless, Defendant serviced a verified Initial Disclosures pleading on June 10, 2026. Likewise, Plaintiff has provided no authority to support its argument that Defendant must produce all documents in its DealerCONNECT database for the subject vehicle. Plaintiff argues that the following items must be produced pursuant to section 871.26(h): Trouble Not Found (“TNF”) visits; AutoPay flash/reprogram claims; all warranty claims paid under both the 85-41-XX-XX prefix and the 08-19-XX-40 series for the Subject VIN; Technical Service Bulletins (“TSBs”); Informational Service Bulletins (“ISBs”); recall records; and all service manuals for the Subject vehicle. Defendant does not dispute that the requested documents are required by the statute but rather argues that it is not required to turnover all documents in its databases. The Court finds that the requested documents fall within the scope of section 871.26(h). It appears that Defendant possesses such records and can easily identify them within its internal systems by searching the Vehicle Identification Number (“VIN”) of the subject vehicle. The motion to compel is DENIED in part as to the request for verification and the request for production of the entirety of the DealerCONNECT database for the subject vehicle. Upon reviewing the relevant facts in this matter, the Court declines to issue sanctions. The motion to compel is GRANTED in part as to the remaining requests for relief. Within 30 days of this ruling, Defendant shall conduct a VIN-based search of all internal systems identified in the instant motion and provide a verified certification that the search was completed; Defendant shall produce all warranty transaction history, unverified complaint claims, AutoPay claims, LOP 85-41-XX-XX diagnostic claims, and LOP 08-19-XX-40 module reset claims for the subject vehicle; Defendant shall produce all Technical Service Bulletins (TSBs), Informational Service Bulletins (ISBs), safety recalls, emissions recalls, Customer Satisfaction Notifications (CSNs), and Rapid Service Updates (RSUs) applicable to the Subject Vehicle; and Defendant shall produce all service manuals reasonably related to the nonconformities pertaining to the subject vehicle, including manuals for every system or component that was diagnosed, attempted to be diagnosed, or repaired.

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Plaintiff argues that Defendant has not provided written responses accompanied by verifications pursuant to the requirements of Code of Civil Procedure section 2016.090. Nothing in section 821.26 requires signed verifications nor does Plaintiff provide any authority linking the verifications of section 2016.090 to section 821.26. Nonetheless, Defendant serviced a verified Initial Disclosures pleading on June 10, 2026. Likewise, Plaintiff has provided no authority to support its argument that Defendant must produce all documents in its DealerCONNECT database for the subject vehicle.

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The motion to compel is DENIED in part as to the request for verification and the request for production of the entirety of the DealerCONNECT database for the subject vehicle. Upon reviewing the relevant facts in this matter, the Court declines to issue sanctions.

The motion to compel is GRANTED in part as to the remaining requests for relief. Within 30 days of this ruling, Defendant shall conduct a VIN-based search of all internal systems identified in the instant motion and provide a verified certification that the search was completed; Defendant shall produce all warranty transaction history, unverified complaint claims, AutoPay claims, LOP 85-41-XX-XX diagnostic claims, and LOP 08-19-XX-40 module reset claims for the subject vehicle; Defendant shall produce all Technical Service Bulletins (TSBs), Informational Service Bulletins (ISBs), safety recalls, emissions recalls, Customer Satisfaction Notifications (CSNs), and Rapid Service Updates (RSUs) applicable to the Subject Vehicle; and Defendant shall produce all service manuals reasonably related to the nonconformities pertaining to the subject vehicle, including manuals for every system or component that was diagnosed, attempted to be diagnosed, or repaired.